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TENTATIVE RULING

September 22, 2026

24SMCV02567 (Kousnetz v. McCaney)

RELEVANT BACKGROUND

On May 30, 2024, plaintiff Savanah Kousnetz (Plaintiff) filed her complaint against Patrick McCaney (Patrick); Jennifer McCaney (Jennifer); and B. McCaney (B.M.), alleging five causes of action: 1. Negligence 2. Intentional Infliction of Emotional Distress 3. Negligent Misrepresentation 4. Intentional Misrepresentation and 5. Negligent Failure to Warn.

Undisputed Material

Facts – Jennifer's MSJ

Plaintiff was connected with Jennifer through a nanny agency. (UMF 3.) Plaintiff attended a trial period with Jennifer and the children prior to any formal agreement. (Id. 4.) Plaintiff was nannying all three of the McCaney children during the trial period. (Id.)

On June 6, 2022, Jennifer and Plaintiff signed a document, titled "Employment Agreement – The McCaney Family & Savanah" (Agreement). (Id. 5.) The Agreement states that Plaintiff would work Monday through Friday from 12:00 p.m. to 8:00 p.m., at a rate of \$40.00 per hour, and provided overtime pay, a per diem while traveling,

vacations, paid time off, and a health insurance stipend. (Id. 6.) The Agreement outlined Plaintiff's responsibilities for performing "nanny duties" including childcare and light housekeeping for the three McCaney children. The Agreement also outlined travel expectations and provided a travel stipend on top of Plaintiff's hourly rate. (Id. 7.)

Plaintiff did not determine her schedule, job responsibilities, or day-to-day tasks with the children—Plaintiff acted at the direction of Jennifer at all times. Jennifer approved Plaintiff's time, paid Plaintiff, and provided feedback on Plaintiff's performance. (Id. 8.) Plaintiff was provided with a car to drive the children in during her work as their nanny and was reimbursed for any personal money used to buy supplies or toys for the children. (Id. 9.)

In August 2022, as part of her duties, Plaintiff was asked to accompany Defendant to the Hamptons. The Hamptons trip was not a vacation for Plaintiff—it was work—as Plaintiff was paid for her time there and acted at the direction of Jennifer. (Id. 10.) On August 16, 2022, while at the vacation home, B.M., who was eight (8) years old at the time, became agitated. When Jennifer asked Plaintiff to help her get B.M. off a couch, B.M. flailed his legs and struck Plaintiff in the right wrist, causing her injury. (Id. 11.) Following the incident, Plaintiff continued to work and did not inform Jennifer of her injury until days later. (Id. 12.) Plaintiff went to the emergency room on August 20, 2022 for her wrist injury. (Id. 13.)

Following the incident, Plaintiff received a form denial letter from Sedgwick after failing to provide substantive medical and factual evidence to substantiate her injury claim. No reservations were issued by Sedgwick in the form denial. (Id. 14.)

Plaintiff has a bachelor's degree in psychology and a master's degree in applied behavioral analysis. (Id. 17.) Plaintiff has special training in Crisis Prevention Intervention ("CPI"), which includes learning how to block fights, hits, and punches from children. (Id. 18.) Prior to working for Defendant, Plaintiff worked in a behavioral therapy position at a behavioral health company called Holding Hands. (Id. 19.) Plaintiff has previously worked as a nanny for a child with behavioral issues. In her previous role, Plaintiff nannied for a ten-year-old child that had four to six tantrums a day. (Id. 20.) Plaintiff is

trained through her education and experience to handle behavioral issues of children. (Id. 21.) Plaintiff admitted that she did not rely on Defendant's alleged misrepresentations, as Plaintiff testified that knowing B.M.'s history would not have changed how Plaintiff approached her job. Indeed, she testified that her "approach was the same." (Id. 22.)

Jennifer and Patrick are insureds under a homeowner's insurance policy that contains workers' compensation coverage. (UMF 1.) No insurer has taken the position that any exclusion in the workers' compensation policy applies to the alleged conduct of B.M. (Id. 2.)

Undisputed Material

Facts – Patrick's MSJ

Patrick did not sign the "Employment Agreement." (Patrick's UMF 1.) Mr. Patrick McCaney and his ex-wife separated in 2022 and legally divorced in 2023. (Id. 2.) Patrick was not living with his family/wife in 2022. (Id. 3.) Patrick has no knowledge of the alleged incident(s). (Id. 4.) Patrick had no knowledge when Plaintiff started, he did not know what he duties or obligations or responsibilities were, or even what her travel plans were. (Id. 6.) Patrick has never met the Plaintiff or spoken to her. (Id. 9.) Patrick's ex-wife kept the children from him, and he did not see his child B.M. for over a year. (Id. 10.)

INSTANT MOTIONS

On February 20, 2026, Jennifer filed the instant motion for summary judgment. Plaintiff filed an opposition, and Jennifer filed a reply.

On April 20, 2026, Patrick filed the instant motion for summary judgment. Plaintiff filed an opposition, and Patrick filed a reply.

For the reasons set forth in detail below, both motions for summary judgment are GRANTED.

EVIDENTIARY OBJECTIONS

The Court declines to rule on Plaintiff or Jennifer's objections, as they are not material to the Court's determination.

DISCUSSION

I.

JENNIFER'S

MOTION FOR SUMMARY JUDGMENT

Here, Jennifer argues that Plaintiff's claim fails on multiple independent grounds: (1) the doctrine of primary assumption of risk bars recovery because the alleged injury arose from the very risk inherent in the caregiving activity Plaintiff voluntarily undertook; (2) the claim is independently barred by the exclusive remedy provisions of the Workers' Compensation Act because the alleged injury occurred in the course and scope of Plaintiff's employment; (3) California law does not support imposing a duty on an eight-year-old child for impulsive conduct during a temper tantrum while being physically managed by a trained caregiver; and (4) even if a duty could be established, Plaintiff cannot prove breach under the governing child standard, which evaluates conduct in light of a child's age, intelligence, experience, and developmental limitations—not adult expectations of judgment, restraint, or emotional regulation.

The Court finds that Jennifer has satisfied her burden as the moving party. The Court agrees that the claim is barred by the exclusive remedy provisions of the Workers' Compensation Act because the alleged injury occurred in the course and scope of Plaintiff's employment. Further, as set forth below, the Court finds that Plaintiff has failed to meet her responsive burden to raise a triable issue of material fact.

Worker's Compensation Exclusivity
Rule

When an employee sustains an injury "arising out of and in the course of the employment," and the statutory conditions of compensation are met, liability exists "without regard to negligence" and workers' compensation is "the sole and exclusive remedy" for the injury. (Lab. Code, § 3600, subd. (a); Lab. Code, § 3602, subd. (a).) The worker's compensation exclusivity rule applies to work-related injuries regardless of

fault, including injuries “attributable to the employer’s negligence or misconduct” as well as “the employer’s failure to provide a safe workplace.” (*Privette v. Super. Ct.* (1993) 5 Cal.4th 689, 697.)

The exclusivity rule applies to claims by hired caregivers for injuries caused by a patient that the caregiver was hired to manage. (*Gregory v. Cott* (2014) 59 Cal.4th 996, 1001–1002 [held that workers’ compensation, not tort recovery, was the appropriate remedy where in-home caregiver who was injured by an Alzheimer’s patient sued the patient and her husband for negligence and battery].)

The term employee is defined broadly in Labor Code section 3351 to mean “every person in the service of an employer under any appointment or contract of hire or apprenticeship, express or implied, oral or written, whether lawfully or unlawfully...” (*Arriaga v. County of Alameda* (1995) 9 Cal.4th 1055, 1061.) Under Labor Code section 2775, subdivision (b)(1), a person is presumed to be an employee unless (A) the person is free from control and direction in performing the work, both under the contract and in fact; (B) the work is outside the hiring entity’s usual course of business; and (C) the person is customarily engaged in an independently established trade, occupation, or business of the same nature. (Lab. Code, § 2775.)

Here, the undisputed facts establish that Plaintiff’s alleged injuries arose entirely out of her employment as a nanny. Plaintiff was an in-home caregiver injured by the child she was hired to care for. (UMF Nos. 2–8.) As such, she is precluded from pursuing tort claims for her injuries. Plaintiff was hired to provide in-home childcare services, including supervising the children, managing their conduct, and physically intervening when necessary. (UMF Nos. 5–8.) At the time of the incident, Plaintiff was actively working, being compensated for her services, and performing assigned childcare duties. (UMF Nos. 8–9.) Plaintiff was hired to supervise young children, including handling behavioral issues such as agitation, resistance, and physical outbursts. (UMF Nos. 5, 12–15.)

The injury Plaintiff alleges occurred while Plaintiff was attempting to manage B.M.’s behavior and remove him from a couch at the direction of her employer. (UMF Nos. 9.) Plaintiff’s presence in the location, interaction with B.M., and physical engagement with him were all directly attributable to her employment. (UMF Nos. 1–9.) The risk

that a child might kick, flail, or physically resist during such an episode is inherent in Plaintiff's role as a nanny. The conduct at issue, an eight-year-old child's reactive and impulsive physical movement during a period of agitation, is not an external hazard. (UMF No. 9.) Consequently, Plaintiff's claim is confined to the workers' compensation system.

The Legislature has limited the exceptions to the exclusive remedy rule. (Lab. Code § 3602, subd. (a) [describing the only permissible exceptions as those in Labor Code sections 3602, 3706, and 4558].) None of these exceptions applies to the instant case and Plaintiff's Opposition fails to identify any applicable exception to workers' compensation exclusivity.

The Court is not persuaded by Plaintiff's argument that Jennifer has not identified who Plaintiff's employer is, and Plaintiff failed to present evidence to raise a triable issue of material fact as to whether her injury occurred during the course and scope of her employment. It is an undisputed fact that Jennifer and Plaintiff both signed the June 6, 2022 document titled "Employment Agreement," which laid out Plaintiff's nannying responsibilities, as well as her schedule, hourly rate, overtime pay, paid time off, and health insurance stipend. (UMF 5-7; PUMF # 1, 6; Ex. D of Marshall Declaration.) Plaintiff's deposition testimony confirmed, "[Jennifer] is the one that determined [Plaintiff's] schedule and job responsibilities[.]" (UMF No. 8; Ex. B of Marshall Declaration.) Furthermore, it is undisputed that Plaintiff accompanied Jennifer and the children to the Hamptons in August 2022, for which Plaintiff was paid for her time there. (UMF No. 10.) It is undisputed that during the Hamptons trip, Plaintiff was asked by Jennifer to help get the minor child off a couch, and while doing so, the minor child flailed his legs and struck Plaintiff in the wrist, causing her injury. (UMF No. 11.)

Additionally, Patrick's lack of involvement or authority over Plaintiff's hiring does not create a genuine dispute of material fact because it does not change the undisputed fact that Plaintiff and Jennifer were in an employment relationship, and an employee may have more than one employer for purposes of workers' compensation. (*Santa Cruz Poultry, Inc. v. Superior Court* (1987) 194 Cal.App.3d 575, 578.).

The Court is not persuaded by Plaintiff's arguments regarding the denial from the insurance carrier. A denial

letter from an insurance carrier that “is not a final determination” and which “can be reversed” does not exempt Plaintiff from the exclusivity rule. The undisputed evidence shows that the insurance policy contained workers’ compensation coverage. (UMF 1-2.) Plaintiff’s failure to substantiate her claim does not exempt Plaintiff from workers’ compensation exclusivity. (UMF 14.)

The Court is not persuaded by Plaintiff’s argument that there is a triable issue of material fact as to whether she was an independent contractor. Plaintiff has not provided any competent evidence that she was not an employee for purposes of workers’ compensation. Plaintiff’s own testimony provides all the evidence one needs to determine that Plaintiff is an employee. (UMF Nos. 5-8; PUMF # 1, 6.) Plaintiff testified that “[Jennifer] is the one that determined [Plaintiff’s] schedule and job responsibilities[.]” (Id.) Also, the undisputed facts show that Plaintiff was in the Hamptons because she was paid to be there to nanny for Defendant’s children, and Plaintiff was working at the specific direction of Jennifer when the injury occurred. (UMF Nos. 10, 11.)

Misrepresentation

The elements of intentional misrepresentation are (1) a misrepresentation; (2) knowledge of its falsity; (3) intent to induce reliance; (4) actual and justifiable reliance; and (5) resulting damage. (Chapman v. Skype Inc. (2013) 220 Cal.App.4th 217, 230-231.)

The elements of a cause of action for negligent misrepresentation include “[m]isrepresentation of a past or existing material fact, without reasonable ground for believing it to be true, and with intent to induce another’s reliance on the fact misrepresented; ignorance of the truth and justifiable reliance on the misrepresentation by the party to whom it was directed; and resulting damage.” (Hydro-Mill Co., Inc. v. Hayward, Tilton & Rolapp Ins. Associates, Inc. (2004) 115 Cal.App.4th 1145, 1154, quotation marks omitted.)

The Court is persuaded by Plaintiff’s argument regarding concealment of known dangers, i.e., prior instances of similar behavior. Plaintiff contends that intentional employer misconduct that steps outside the employer’s “proper role[]” lies beyond “the boundaries of the compensation bargain” and remains civilly actionable, citing *Fermino*

v. Fedco, Inc. (1994) 7 Cal.4th 701, 708, 713–714 and Charles J. Vacanti, M.D., Inc. v. State Comp. Ins. Fund (2001) 24 Cal.4th at p. 820 [exclusivity turns on whether the alleged acts are “a normal part of the employment relationship”].)

Jennifer argues in reply that, “an employer’s intentional misconduct in connection with actions that are a normal part of the employment relationship, resulting in emotional injury is considered encompassed within the compensation bargain, even if the misconduct could be characterized as ‘manifestly unfair, outrageous, harassment, or intended to cause emotional disturbance.’” (Singh v. Southland Stone, U.S.A., Inc. (2010) 186 Cal.App.4th 338, 367, quoting Cole v. Fair Oaks Fire Protection Dist. (1987) 43 Cal.3d 148, 160.)

Jennifer’s reliance on Singh is misplaced. Singh held that the exclusivity rule did not apply to the former employee’s claims for promissory estoppel, misrepresentation to induce relocation for employment, false promise, intentional misrepresentation, concealment, or for unpaid wages.(Id. at pp. 368-369.) Additionally, the entire quote referenced by Jennifer is: “An employer’s intentional misconduct in connection with actions that are a normal part of the employment relationship, such as demotions and criticism of work practices, resulting in emotional injury is considered to be encompassed within the compensation bargain, even if the misconduct could be characterized as ‘manifestly unfair, outrageous, harassment, or intended to cause emotional disturbance.’” (Id. at p. 367.) Here, the exclusivity rule does not apply given that the intentional misconduct concerns intentional misrepresentation by concealment.

But the Court agrees with Jennifer that Plaintiff cannot sustain the claims as independent torts because there was no reliance on the alleged misrepresentation, and Plaintiff has failed to raise a triable issue of material fact. Plaintiff admitted that she did not rely on Defendant’s alleged misrepresentation as Plaintiff testified that knowing B.M.’s history would not have changed how she approached the job. (UMF No. 22.) Plaintiff testified that her “approach was the same.” (UMF No. 22.) As such, Plaintiff cannot show that she, as a trained behavioral therapist with experience in handling behavioral issues in children, relied on the alleged misrepresentations to her detriment. (UMF Nos. 16, 18, 20.) In opposition, Plaintiff fails to present any evidence showing reliance. Plaintiff references the allegations in her complaint and additional material facts regarding the

testimony from the prior nanny (PUMF 13, 16-18), however, Plaintiff does not present any evidence to show reliance. (See Opp. at p. 17:2-14.)

Conclusion

Based on the foregoing, the Court finds that Plaintiff's first, second, and fifth causes action alleged against Jennifer are barred by the exclusive remedy of workers' compensation because each of these claims arise directly out of Plaintiff's employment.

The Court further finds that the third and fourth causes of action for negligent and intentional misrepresentation fail because Jennifer has met her burden of showing that Plaintiff cannot establish reliance, and Plaintiff has failed to meet her responsive burden of raising a triable issue of material fact with respect to reliance.

Plaintiff's request for a continuance under Code of Civil Procedure section 437c, subdivision (h) is DENIED. Plaintiff has not shown that the additional discovery will reveal facts essential to justify the opposition.

Accordingly, Jennifer's motion for summary judgment is GRANTED.

II.

PATRICK'S

MOTION FOR SUMMARY JUDGMENT

Here, Patrick argues that (1) each cause of action alleged against him is barred by the exclusive remedy of workers' compensation; (2) there is no duty or special relationship because he was not present at the time of the alleged incident, he did not hire Plaintiff, and that his ex-wife Jennifer had control of the children and the activities of Plaintiff; and (3) the claim is barred by primary assumption of the risk.

Duty - Special Relationship

There is no duty to warn or protect in the absence of a special relationship. (See *Williams v. State of California* (1983) 34 Cal.3d 18, 23 ["A person who has not created a peril

is not liable in tort merely for failure to take affirmative action to assist or protect another unless there is some relationship between them which gives rise to a duty to act.].) “[A] duty to warn or protect may be found if the defendant has a special relationship with the potential victim that gives the victim a right to expect protection.” (Regents of University of California v. Superior Court (2018) 4 Cal.5th 607, 618.) “[T]he absence of an ability to control is fatal to a claim of legal responsibility.” (Todd v. Dow (1993) 19 Cal.App.4th 253, 259.)

The Court finds that Patrick has met his initial burden as the moving party of establishing the absence of a legal duty by showing the absence of a special relationship, and Plaintiff has failed to raise a triable issue of material fact.

The undisputed evidence shows that Patrick had no knowledge of Plaintiff; never interacted with her; was not present at the time of the incident; had not seen his child, B.M., for over a year; and had no control over the child at the time of the incident. (Patrick’s UMF 1-10.)

Patrick and his ex-wife, Jennifer, separated on or about February 1, 2022. (Patrick’s UMF 2.) Patrick was not living with his family or wife in 2022. (Ex. A, Depo., 30:11- 16.) Patrick did not sign the June 6, 2022, employment agreement, which was signed by only Jennifer and Plaintiff. (UMF 1.) Patrick testified that he never met or spoke with Plaintiff. (Id. 3.) At the time of the incident in August 2022, Jennifer and Plaintiff were on a trip to the Hamptons with the children. (Id. 10.) Patrick had no knowledge when Plaintiff started, did not know what her duties or obligations or responsibilities were, or what her travel plans were. (Ex. A, 70:17-25.) Patrick testified that his ex-wife kept the children from him, and he did not see his child, B.M., for over a year. (Ex. A, 34:24-25, 35:1.) The Court also notes that Plaintiff does not contend that Patrick was present at the time of the incident, and there is no evidence that Patrick had control of the children at the time of the incident.

The Court is not persuaded by Plaintiff’s arguments in opposition. Plaintiff fails to present any evidence to raise a triable issue of material fact as to whether a special relationship existed or any other basis to find that Patrick owed Plaintiff a legal duty. Plaintiff presents no evidence to challenge Patrick’s evidence that he had no knowledge of Plaintiff; never interacted with her; was not present at the time

of the incident; had not seen his child, B.M., for over a year; and had no control over the child at the time of the incident. (Patrick's UMF 1-10.)

The

Court is not persuaded by Plaintiff's arguments with respect to the testimony of Drabecki and Mata regarding Patrick's alleged knowledge of the child's behavioral issues. Again, in the absence of a special relationship, Patrick's alleged knowledge of alleged violent conduct of children is irrelevant. Without a special relationship, any such knowledge would not trigger a duty to warn or protect Plaintiff.

Plaintiff's

reliance on *Ellis v. D'Angelo* (1953) 116 CA2d 310 is misplaced. In *Ellis*, both parents hired the babysitter, resided in the same household, and failed to warn the babysitter of the aggressive tendencies of the minor. No similar facts are present here. The undisputed evidence shows that Patrick had no knowledge of Plaintiff; never interacted with her; was not present at the time of the incident; had not seen his child, B.M., for over a year; and had no control over the child at the time of the incident. (Patrick's UMF 1-10.)

Worker's Compensation Exclusivity
Rule

Plaintiff failed to present any evidence to challenge Patrick's evidence that Plaintiff was not employed by Patrick. But, even if Patrick employed Plaintiff, the Court would find that each cause of action alleged against Patrick is barred by the exclusive remedy of workers' compensation for the same reasons set forth above with respect to Jennifer.

Primary
Assumption of the Risk

In addition to the above, the Court finds that the doctrine of primary assumption of risk bars recovery because the alleged injury arose from the very risk inherent in the caregiving activity Plaintiff voluntarily undertook.

Primary assumption of risk operates

as a complete bar to recovery as a matter of law where the plaintiff's harm results from a risk inherent in the activity the plaintiff voluntarily undertook, whether the plaintiff's conduct in undertaking the activity was reasonable or unreasonable. (Knight v. Jewett (1992) 3 Cal. 4th 296, 309 and 313–15; Gregory v. Cott (2014) 59 Cal.4th 996, 1001–1002; Herrle v. Estate of Marshall (1996) 45 Cal. App. 4th 1761, 1764 [caregiver's claims were barred where she was injured by a mentally impaired individual, because the risk of physical aggression was inherent in the caregiving role].)

“[W]hether the primary assumption of risk doctrine applies is a legal question to be decided by the court.” (Moser v. Ratinoff (2003) 105 Cal.App.4th 1211, 1217.) Where a plaintiff voluntarily engages in an activity that carries inherent risks, “the defendant has no duty to protect the plaintiff from those risks.” (Gregory, supra, 59 Cal.4th at p. 1001.) The analysis is “whether, in light of the nature of the ... activity in which defendant and plaintiff were engaged, defendant's conduct breached a legal duty of care to plaintiff.” (Knight, supra, at p. 315.) “[D]efendants generally have no legal duty to eliminate... risks inherent in the [activity] itself.” (Id. at p. 315.) A duty arises only where the defendant's conduct increases the risks “over and above those inherent” in the activity or falls outside its ordinary scope. (Id. at pp. 315–316.)

The Court agrees with Patrick that Herrle and Gregory are on point. In Hearle, a certified nurse's aide working in a convalescent hospital was injured while assisting an Alzheimer's patient who became combative during a chair to bed transfer. (Herrle, supra, 45 Cal. App. 4th at p. 1764.) Further, Gregory adopted and extended Herrle's reasoning and confirmed that “the same rule applies to in-home caregivers who, like their institutional counterparts, are employed specifically to assist these disabled persons.” (Gregory, supra, 59 Cal. 4th at p. 1000.) There, a home health aide was injured while caring for an Alzheimer's patient known to be combative, after the patient approached from behind and caused the aide to drop a knife during routine household duties. (Id. at pp. 999–1000.)

Here, the undisputed facts compel a conclusion that primary assumption of risk applies and bars Plaintiffs' claims. Plaintiff was hired as a Nanny with a background, training, experience and expertise as a well-qualified person in the behavioral issues of minors. (UMF 17-22.) She concedes she was aware of the techniques and procedures in handling

and approaching such children and she further was well aware at the time of the incident she was asked to remove the minor child from the sofa as he was exhibiting behavioral issues such as a “temper tantrum.” (Id.) Plaintiff’s claims are thus barred by the doctrine of assumption of the risk. Plaintiff fails to present any competent evidence or relevant authority to show otherwise.

Misrepresentation

The

Court agrees with Patrick that there is no basis for a claim for misrepresentation. Plaintiff has not established an “affirmative or positive assertion of fact” upon which a misrepresentation claim could be based. (Weissich v. County of Marin (1990) 224 Cal.App.3d 1069, 1083.) Nor has Plaintiff offered any evidence that she actually and “reasonably relied on any alleged ‘misrepresentation’ to her detriment.” (Ibid.)

IIED

The

Court is not persuaded by Plaintiff’s arguments with respect to the IIED claim. There is simply no evidence of any conduct by Patrick at all, let alone any conduct that is extreme and outrageous. Again, Plaintiff has not presented any evidence to challenge the evidence presented by Patrick showing that he had no involvement, was not present, never interacted with Plaintiff, was not aware of Plaintiff, and had not seen his child B.M. for a year. (Patrick’s UMF 1-10; Ex. A, Depo., 30:11- 16; 34:24-25, 35:1; 70:17-25.)

Accordingly, Patrick’s motion for summary judgment is GRANTED.

Moving parties to give notice.